

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

PATRICK ELLIOT,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, DETECTIVE JASON
RAGOO, Tax No. 939268, LIEUTENANT DANIEL
NICOLETTI, Tax No. 942271, and DETECTIVE
CHRISTOPHER VICKERY, Tax No. 945079,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates KINGS
County as the place of trial.

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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 16, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC

DAVID M. HAZAN, ESQ.

Attorney for Plaintiff

30 Vesey Street, 4th Floor

New York, New York 10007

(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JASON RAGOO, Tax No. 939268, Detective Bureau,
LIEUTENANT DANIEL NICOLETTI, Tax No. 942271, 120th Precinct, 78 Richmond
Terrace, Staten Island, NY 10301
DETECTIVE CHRISTOPHER VICKERY, Tax No. 945079, Detective Bureau Gun
Violence Suppression Unit

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PATRICK ELLIOT,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JASON
RAGOO, Tax No. 939268, LIEUTENANT DANIEL
NICOLETTI, Tax No. 942271, and DETECTIVE
CHRISTOPHER VICKERY, Tax No. 945079,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff PATRICK ELLIOT, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 16, 2019, at approximately 7:00 p.m., plaintiff was a passenger in a vehicle that was driving in the vicinity of 590 Decatur Street, Brooklyn, New York 11233 when the defendants pulled the vehicle over for allegedly not signaling when turning, and when the defendant New York City police officers approached the vehicle they unlawfully subjected plaintiff to an unlawful search, false arrest and false imprisonment, and defendants subjected plaintiff to the use of excessive force. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess objective facts to establish probable cause to believe he violated the law or committed a crime. Plaintiff suffered injuries throughout his body from the excessive force used against him by the officers. At no time did the defendant officers recover any illegal drugs, weapons, or contraband from plaintiff or from plaintiff's possession, custody, or control. The defendants falsely arrested plaintiff without probable cause to believe he committed a crime and transported him against his will to the 81st Precinct whereat plaintiff was unlawfully fingerprinted, photographed and detained in a filthy holding cell for many hours. The unlawful detention of plaintiff continued when he was transported to Kings County Central Booking. On September 17, 2019, at approximately 7:00 pm plaintiff was released from custody at Kings County Central Booking, without appearing before a judge or being charged with committing a crime, after the Kings County District Attorney's Office declined to prosecute plaintiff because they lacked probable cause and there

was “Insufficient Evidence to Prosecute.” Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and subjected plaintiff to the use of excessive force in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff PATRICK ELLIOT is a resident of the state of New York.

3. Defendant DETECTIVE JASON RAGOO, Tax No. 939268, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE JASON RAGOO, Tax No. 939268, was at all times relevant herein, assigned to the Gun Violence Suppression Division and is currently assigned to the Detective Bureau.

5. Defendant DETECTIVE JASON RAGOO, Tax No. 939268, is being sued in his individual and official capacity.

6. Defendant DETECTIVE JASON RAGOO, Tax No. 939268, has a documented history of violating the law, violating the Constitutional Rights of members of the public, committing crimes, and engaging in police misconduct, all of which is known to defendant City of New York and the NYPD, but the NYPD and has not taken appropriate action to prevent Detective Ragoo from continuing to engage in police misconduct and he continues to be employed as a police officer with the NYPD.

7. Upon information and belief, while defendant DETECTIVE JASON RAGOO, Tax No. 939268, was employed as a NYPD Police Officer he was arrested for allegedly beating and nearly blinding a Long Beach firefighter and he was suspended without pay for a period of time after that incident.

8. Upon information and belief, in 2020 the NYPD found defendant DETECTIVE JASON RAGOO, Tax No. 939268 guilty of using a nightstick as a club against a member of the public, and the NYPD disciplined defendant Detective Ragoo by verbally instructing him not to engage in such conduct again. Upon information and belief, defendant Detective Ragoo did not receive any additional discipline from the NYPD for using his nightstick as a club against a member of the public.

9. Defendant LIEUTENANT DANIEL NICOLETTI, Tax No. 942271, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant LIEUTENANT DANIEL NICOLETTI, Tax No. 942271, was at all times relevant herein, assigned to the Gun Violence Suppression Division and is currently assigned to the 120th Precinct.

11. Defendant LIEUTENANT DANIEL NICOLETTI, Tax No. 942271, is being sued in his individual and official capacity.

12. Defendant LIEUTENANT DANIEL NICOLETTI, Tax No. 942271, has a documented history of violating the Constitutional Rights of members of the public and engaging in police misconduct, and lying about the misconduct he engaged in, which is known to defendant City of New York and the NYPD, but the NYPD and the City of New York have not taken appropriate action to prevent LIEUTENANT DANIEL NICOLETTI from continuing to engage in police misconduct and he continues to be employed as a lieutenant with the NYPD who is responsible for supervising other police officers to ensure they do not engage in police misconduct.

13. Upon information and belief, in 2020 allegations that LIEUTENANT DANIEL NICOLETTI, Tax No. 94227, used his nightstick as a club against a member of the public and then made an untruthful and misleading official statement about the incident were substantiated against Lieutenant Nicoletti, but the NYPD did not discipline him for engaging in such conduct.

14. Upon information and belief, defendant LIEUTENANT DANIEL NICOLETTI, Tax No. 94227, has been named as a defendant in at least 7 known lawsuits wherein he was accused of violating the Constitutional Rights of members of the public which resulted in at least, \$403,000 in settlements paid by the City of New York, and defendant LIEUTENANT DANIEL NICOLETTI received no discipline by the NYPD for his conduct in any of the events underlying those lawsuits.

15. Defendant DETECTIVE CHRISTOPHER VICKERY, Tax No. 945079, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE CHRISTOPHER VICKERY, Tax No. 945079, is and was at all times relevant herein, assigned to the Gun Violence Suppression Division.

17. Defendant DETECTIVE CHRISTOPHER VICKERY, Tax No. 945079, is being sued in his individual and official capacity.

18. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and

employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On September 16, 2019, at approximately 7:00 p.m., plaintiff was a passenger in a vehicle that was driving in the vicinity of 590 Decatur Street, Brooklyn, New York 11233 when the defendant New York City Police Officers pulled the vehicle over for allegedly not signaling when turning.

23. The defendant New York City police officers approached the vehicle, unlawfully pulled plaintiff out of the vehicle from the front passenger seat, unlawfully searched plaintiff, unlawfully handcuffed and falsely arrested plaintiff, without probable cause, and subjected plaintiff to the use of excessive force by punching and kicking him all over his body.

24. The defendants did not possess any legal basis to forcefully remove plaintiff from the vehicle, to search plaintiff or place him under arrest.

25. At no time relevant herein did plaintiff violate the law or commit a crime.

26. At no time relevant herein did the defendants possess objective facts to establish probable cause to believe plaintiff violated the law or committed a crime.

27. Plaintiff suffered bruises and pain throughout his body from the excessive force used against him by the officers.

28. At no time did the defendant officers recover any illegal drugs, weapons, or contraband from plaintiff or from plaintiff's possession, custody, or control.

29. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

30. Nevertheless, plaintiff was unlawfully handcuffed and falsely arrested plaintiff by the defendant officers without legal justification or probable cause.

31. The defendants falsely arrested plaintiff without probable cause to believe he committed a crime and transported him, against his will, to the 81st Precinct whereat plaintiff was unlawfully fingerprinted, photographed and detained in a filthy holding cell for many hours.

32. Thereafter, the defendant police officers conducted an invasive and unlawful strip search of plaintiff without reasonable suspicion or probable cause to believe he secreted any illegal drugs, weapons, or contraband underneath his clothing.

33. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

34. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks and lift his genitals.

35. The experience was embarrassing for claimant and caused him to suffer severe emotional distress.

36. At no time relevant herein did the defendant police officers recover any illegal drugs, weapons, or contraband from plaintiff.

37. After plaintiff was unlawfully detained for many hours at the 81st Precinct he was transported to Kings County Central Booking whereat the unlawful detention continued.

38. On September 17, 2019, at approximately 7:00 pm plaintiff was released from custody at Kings County Central Booking, without appearing before a judge or being charged with committing a crime after the Kings County District Attorney's Office declined to prosecute plaintiff because they lacked probable cause and there was "Insufficient Evidence to Prosecute."

39. The defendant police officers provided the Kings County District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

40. Defendants fabricated allegations that while they were speaking to the driver of the vehicle during the car stop, they observed plaintiff take plastic baggies out of his pants pocket, which appeared to contain a controlled substance and swallow the baggies.

41. At no time relevant herein did plaintiff possess a controlled substance and the officers' allegations against plaintiff are completely fabricated for the purpose of justifying why

defendants arrested plaintiff for alleged possession of a controlled substance even though the officers did not recover a controlled substance from plaintiff at any time relevant herein.

42. However, the District Attorney's Office determined that there was insufficient evidence to prosecute plaintiff even when taking the officers allegations as true.

43. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

44. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding the issues raises herein and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

45. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

46. In fact, the defendant officers in this case have an extensive history of committing crimes, being arrested, being found guilty by the NYPD of engaging in police misconduct and violating the Constitutional rights of members of the public, and having lawsuits filed against them alleging that they violated the Constitutional Rights of members of the public, but defendant City of New York and the NYPD have not disciplined and/or take appropriate action against defendants so that the defendants would be deterred from continuing to subject members of the public to their unlawful and unconstitutional behavior.

47. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, unlawful strip search, false arrest, and false imprisonment and excessive force because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search, strip search, falsely arrest and subject members of the public to the use of excessive force, without probable cause or legal justification.

48. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

49. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

50. The unlawful stop, question, frisk, search, false arrest and imprisonment, illegal strip search, and excessive force used by the defendants against plaintiff caused plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, unlawfully strip searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.\

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop, and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search plaintiff.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Strip Search

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband underneath his clothing, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

67. As a result of the foregoing, plaintiff's Constitutional rights were deprived, and he sustained great emotional injuries.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

72. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

73. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

77. The use of excessive force by defendants by punching and kicking plaintiff throughout his body and applying the handcuffs in an unreasonably tight manner were objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch plaintiff but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Plaintiff was unlawfully searched, strip searched, frisked, falsely arrested, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and subject plaintiff to excessive force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

88. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, strip searched, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

89. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, and Fourteenth Amendment Rights of members of the public.

90. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

91. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

92. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

93. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

94. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth and Fourteenth Amendments to the Constitution of the United States.

95. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Department's suspicionless seizures, searches, arrests, and prosecutions.

96. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth and Fourteenth Amendments to the United States Constitution.

97. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

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PRAYER FOR RELIEF

WHEREFORE, plaintiff Patrick Elliot demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 16, 2022

By: David Hazan
DAVID HAZAN, ESQ.
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 16, 2022

David Hazan

DAVID M. HAZAN, ESQ.